

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN URUGUAY

Complete Community Opposition How-To

This guide is built around Uruguay's rare advantage — real direct-democracy tools, the power to repeal a law by referéndum and to amend the Constitution by plebiscito, backed by genuinely independent courts and one of the region's strongest rule-of-law traditions — and it names the bodies and terms you'll meet (the referéndum and plebiscito, the environmental authorisation and audiencia pública, the constitutional shields, the courts and audit bodies) in plain words.

INTRODUCTION & FRAMEWORK

In 2002 the government signed a letter of intent with the International Monetary Fund committing to **privatise the country's drinking-water and sanitation services**. Rather than accept it, a coalition of unions, environmental groups, academics, artists, and ordinary citizens formed the **Comisión Nacional en Defensa del Agua y de la Vida (CNDAV)** and turned to a tool Uruguay's constitution puts directly in the people's hands: they gathered the signatures of a **tenth of the entire electorate** and forced a national vote to amend the Constitution itself. On **31 October 2004, close to two-thirds of Uruguayans voted "yes"** — about 64 per cent — writing into **Article 47** that access to water and sanitation is a fundamental human right, that these services must be provided **exclusively and directly by the state**, and that the social use of water comes before the commercial. Water privatisation was banned outright, existing private contracts wound down — the **first time any nation had enshrined the human right to water in its constitution by direct democracy**, a precedent the United Nations itself echoed in 2010. And the win still bites: two decades later, that same Article 47 was the ground on which the courts and public pressure halted and ultimately killed the **Neptuno** project, a scheme that would have let a private consortium treat much of the capital's drinking water. A people rewrote their own constitution and stopped a privatisation outright, because they organised, endured, and used the levers the system placed in their hands.

The Comisión Nacional en Defensa del Agua y de la Vida (CNDAV) drew on a genuinely strong toolkit, rare in the region, in a small, stable, unusually law-governed democracy. The **referéndum** can repeal a law, and the **plebiscito** can amend the Constitution — real direct democracy, the lever that banned water privatisation outright. A project needs an **environmental authorisation** with an **audiencia pública** (public hearing), and protest, petition, and litigation are lawful. **Constitutional shields** — like Article 47 on water — protect against specific harms, and Article 47 was the ground on which the courts later killed the Neptuno water scheme. Genuinely **independent courts and audit bodies** enforce the law. And a free press and strong civil society amplify a case. But these tools have real limits, and this guide states them plainly, though they are modest by regional standards: the direct-democracy tools are **powerful but demanding** — a referéndum or plebiscito needs a tenth of the electorate's signatures and a national campaign, years of organised work, as the CNDAV's four-year effort shows — so not every fight can reach that bar. So aim for what these tools can deliver — a law repealed, a privatisation banned, a constitutional shield raised, a project stopped through the courts or the ballot — and, for the biggest fights, be ready for the long, organised campaign the direct-democracy route demands.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of authorisations and laws, and a chain breaks at its weakest link. A Uruguayan fight turns on the **environmental authorisation and the audiencia pública**; on the **constitutional shields** (like Article 47); on the **independent courts and audit bodies**; and — for the biggest fights — on the **direct-democracy tools**, the referéndum and the plebiscito. Every one of those is a link you can grab — and direct democracy, as with the water vote, is the one that reaches highest. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend months — or years — on this, work out your real situation:

- **If there's an environmental authorisation, the audiencia pública and the courts are your everyday levers** — make a substantive submission, then litigate a flawed authorisation.
- **If a constitutional shield fits — water, the environment — invoke it** — Article 47 killed the Neptuno privatisation two decades after it was written.
- **If a law itself is the problem, you can repeal it by referéndum** — a rare, powerful tool.
- **If the fight is big enough for a constitutional change, you can amend the Constitution by plebiscito** — but be ready for a tenth of the electorate's signatures and a years-long campaign, as the water vote took.

Read the whole guide once before you move. Two habits run through it: **use the everyday levers — the audiencia pública, the constitutional shields, the independent courts — for most fights**, and **reach for direct democracy for the biggest ones**, with the organised endurance it demands. That's how Uruguay banned water privatisation outright.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

A project needs an **environmental authorisation** with an **audiencia pública**, decided by the environment ministry. **Constitutional shields** (like Article 47 on water) bind above ordinary decisions. Genuinely **independent courts and audit bodies** enforce the law and can halt a project. And — uniquely powerful — the **people themselves** can repeal a law by **referéndum** or amend the Constitution by **plebiscito**. Know which of these you can reach — direct democracy is the sharpest, the courts and shields the most everyday.

How a Project Moves — and Where You Jump In

The environmental authorisation and audiencia pública. *Your opening* — and it arms every later step: make a substantive submission at the public hearing, and put your objections on the record.

The constitutional shields. *Your opening:* invoke a shield like Article 47 — as the courts did to kill Neptuno.

The independent courts and audit bodies. *Your opening:* litigate a flawed authorisation, or ask the audit bodies to scrutinise it.

Direct democracy. *Your opening* — *the one that reaches highest:* for a law, a referéndum to repeal it; for a constitutional change, a plebiscito to amend the Constitution, as the water vote did.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and what it needs** — the authorisation, the law, the contract: whatever's contested is the soft spot. **What constitutional shield it touches** — water (Article 47), the environment — because a shield reaches above the decision. **Whether a law is the lever** — because if the harm flows from a law, you can repeal it by referéndum.

Who's Supposed to Be Watching

Each is an ally or an arena. The **environment ministry** runs the authorisation and the audiencia pública. The **constitutional shields** protect above ordinary decisions. The **independent courts and audit bodies** enforce the law. The **people** hold the referéndum and plebiscito. And Uruguay's **unions, environmental groups, academics, artists, and a free press** are the forces that reach furthest — the coalition that won the water vote.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises, and they are unusually favourable for the region. What most moves them: whether a constitutional shield fits, whether you can litigate a flaw, and — for the biggest fights — whether you can mount the direct-democracy campaign.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Substantive submission at the audiencia pública	20–40%	during authorisation	low	On record; conditions or a redo
Litigate a flawed authorisation (courts)	30–55%	months–2 yr	low–mod	Authorisation quashed
Invoke a constitutional shield (e.g. Article 47)	35–60%	months–yr	low	Project barred; privatisation blocked (Neptuno)
Audit-body scrutiny	25–50%	months–yr	low	A tainted decision exposed
Referéndum (repeal a law)	30–55%	1–2 yr	mod	A harmful law repealed
Plebiscito (amend the Constitution)	30–55%	years	mod	A constitutional shield created (water)
Coalition + mobilisation + national attention	30–55%	months–years	low	Pressure; a national cause
Everything together (shields, courts, direct democracy)	45–70%	months–years	mod	Stopped, banned, shielded outright

The levers that move the needle most are the **direct-democracy tools** (for the biggest fights) and the **constitutional shields** and **independent courts** (for everyday ones), backed by a broad coalition. The water vote shows the ceiling (a privatisation banned outright, a constitutional right created, echoed worldwide, and still killing projects decades later) and the honest floor (it took a four-year campaign and a tenth of the electorate's signatures). So aim for a law repealed, a privatisation banned, a shield raised, and a project stopped — and, for the biggest fights, mount the long campaign.

On cost: the audiencia pública, the courts, and the shields are affordable, and Uruguay's institutional honesty makes them real; the direct-democracy tools cost mainly organised effort and endurance — a tenth of the electorate's signatures and a national campaign. The great strength is real direct democracy plus genuine rule of law; the great requirement, for the biggest fights, is the endurance the campaign demands.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this authorisation flaw, this constitutional shield, this law to repeal — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company or contract, and its authorisation and legal basis.

2. Where is it, and what does it touch? Map it over water, land, communities, and nature — and flag whether a **constitutional shield** fits, above all **Article 47 on water**, which is a powerful, proven lever.

3. What stage is it at, and what's the next deadline? Is the environmental authorisation or audiencia pública open? Has it issued (litigate it)? Is a law the problem (a referéndum)? Is the fight big enough for a plebiscito? These shape your route.

4. What's the sharpest legal or democratic lever? A flawed authorisation (the courts); a constitutional shield (Article 47); a harmful law (referéndum); a needed constitutional change (plebiscito).

5. Who's your coalition? Unions, environmental groups, academics, artists, communities — the broad front the CNDAV built for the water vote. For a direct-democracy campaign, you'll need it wide.

What this looks like in real life. A scheme would hand a private consortium control of the capital's drinking water. The five questions yield: the consortium and its authorisation; the water and Article 47 (the proven shield); the authorisation to litigate; the constitutional shield as the sharpest lever; and a broad coalition. That's the Neptuno pattern — invoke Article 47, litigate, and mobilise — built on the water vote that created the shield in the first place.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the environmental authorisation and its studies, the audiencia pública record, the contract, the law. Uruguay's institutional honesty and transparency make these reachable. Then read them for the flaws — the understated harm, the constitutional-shield breach, the defective process.

Layer two: the shield and the harm. Document how the project touches a **constitutional shield** (Article 47 on water above all) and the harm it would do — the human core, and the ground for both the courts and a direct-democracy campaign.

Layer three: the map and the lever. Lay the project over the water, land, and communities, and identify your sharpest lever — the flawed authorisation, the shield, the law to repeal, the plebiscito. Walking into the audiencia pública, the courts, or the public with the flaws, the shield, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The environmental authorisation and studies, the audiencia pública record, the contract, the law** — from the environment ministry and public records.
- **The constitutional shield** — Article 47 on water, or the environmental provisions.
- **The authorisation's flaws** — the understated harm, the shield breach, the process defect.
- **The map of harm** — the project laid over water, land, and communities.
- **Expert reports and named testimony** — on the harm and the shield.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; a broad coalition — and, for the biggest fights, a national campaign — gives you the power Uruguay's tools reward. Build in four moves.

Build a broad coalition. The water vote joined unions, environmental groups, academics, artists, and citizens in the CNDAV. Build that broad front — it is what wins an audiencia pública, a court case, and above all a direct-democracy campaign.

Bring in lawyers and experts. An authorisation, constitutional-shield, or direct-democracy fight needs credible legal and technical expertise — on the harm, the shield, the flaws, and the referéndum or plebiscito process. Bring it in early.

Choose your lever — and for the big ones, prepare the campaign. For most fights, the audiencia pública, the courts, and the shields. For the biggest, the **referéndum** (to repeal a law) or the **plebiscito** (to amend the Constitution) — which demand a tenth of the electorate's signatures and a national campaign, so prepare for that endurance.

Build to last. Uruguayan fights, especially direct-democracy ones, run for years — the water campaign took four. Build clear roles, a secure archive, a way to decide together, and the endurance for the long, organised effort the biggest levers demand.

STEP 4: THE COURTS, THE SHIELDS & DIRECT DEMOCRACY

Uruguay's sharpest levers are the constitutional shields and the courts for everyday fights, and direct democracy for the biggest.

The Audiencia Pública and the Courts

Start with the everyday: make a **substantive submission at the audiencia pública**, and litigate a **flawed environmental authorisation** in Uruguay's **genuinely independent courts**, which enforce the law and can quash a defective authorisation.

The Constitutional Shields — Article 47 and Beyond

Invoke a **constitutional shield** where one fits — above all **Article 47 on water**, which bans water privatisation and puts the social use of water before the commercial. It reaches above ordinary decisions and, as **Neptuno** showed, can kill a privatisation two decades after it was written. This is a powerful, proven lever.

Direct Democracy — the Highest Lever

For the biggest fights, reach for direct democracy: a **referéndum to repeal a harmful law**, or a **plebiscito to amend the Constitution** and create a new shield, as the water vote did. Each demands a **tenth of the electorate's signatures** and a national campaign — years of organised work — but each can settle a fight outright and permanently, as Article 47 did.

The Honest Limits

Straight talk: these levers are unusually strong and Uruguay's rule of law genuinely honest, but the direct-democracy tools are demanding — signatures, a national campaign, years of effort — and not every fight can reach that bar. So use the everyday levers — the *audiencia pública*, the shields, the courts — for most fights, reach for direct democracy for the biggest, and count a law repealed, a privatisation banned, a shield raised, and a project stopped as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Water becomes a constitutional right. Not "we oppose the privatisation" but "*Article 47 makes water a human right the state must provide directly — this scheme is unconstitutional,*" as the courts held on Neptuno.

A flawed authorisation becomes a court case. "*The authorisation understated the harm and ignored the shield — it is unlawful.*"

A harmful law becomes a referéndum. "*This law is the problem — and we can repeal it by popular vote.*"

A big fight becomes a constitutional change. "*This is worth a plebiscito — to write the protection into the Constitution, as we did with water.*"

Match it to the venue: the shield and the flawed authorisation to the courts; the substantive objection to the *audiencia pública*; the harmful law to a referéndum; the constitutional change to a plebiscito; the cause to the coalition and the press.

STEP 5: MEDIA STRATEGY

In Uruguay, national attention is a real lever — the water vote became a national cause and a global precedent — and, for a direct-democracy campaign, it is essential to reach the tenth of the electorate and win the vote. A free press and strong civil society make the media front central.

Lead with the right and the harm, not procedure. Not "the authorisation was flawed" but "our drinking water, a constitutional human right, handed to a private consortium." Use your strongest material: the constitutional shield, the harm, the coalition's breadth, and any court or vote in play.

Work several audiences at once. Uruguayan press and public build the national cause and, for a campaign, the signatures and the vote; international attention reaches the precedent, where Uruguay's water vote is celebrated worldwide. Make it easy: clear summaries, the shield, strong testimony.

Two hard rules. Accuracy above all — one exaggeration can discredit everything, especially in a rule-of-law culture. And for a direct-democracy campaign, keep the coalition broad and the message clear enough to win a national vote.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Information request (to the environment ministry).

Subject: Request for the authorisation and studies — [project].

"We, [group/residents], request the environmental authorisation and its studies, the audiencia pública record, and the contract for [project] at [location]. [Contact.]"

8B — Substantive objection at the audiencia pública.

Subject: Objection — audiencia pública for [project].

"We, [group], object to [project]: [it breaches Article 47 / threatens our water/environment; the authorisation is flawed]. We ask that it be refused or reassessed. [Attach evidence.]"

8C — Invoking a constitutional shield (to a lawyer).

Subject: Constitutional challenge — [project].

"We believe [project] breaches [Article 47 on water / the environmental shield]: [specifics]. We've gathered [the authorisation, the harm]. We ask your advice on a constitutional challenge, as with Neptuno. [Contact and evidence summary.]"

8D — Litigating a flawed authorisation.

Subject: Challenge to the authorisation — [project].

"We submit that the environmental authorisation for [project] is unlawful: [specifics]. We ask the courts to quash it. [Attach evidence.]"

8E — Launching a referéndum / plebiscito (to the coalition).

Subject: A popular vote to [repeal the law / amend the Constitution] — [issue].

"We propose a [referéndum to repeal [law] / plebiscito to shield [issue] in the Constitution], as the CNDV did for water. We ask you to join the coalition and the signature drive. [Contact.]"

8F — To the company / consortium.

Subject: Constitutional and legal risk — [project].

"We are the community affected by [project] at [location]. It [breaches Article 47 / rests on a flawed authorisation] and faces constitutional challenge and public mobilisation, as Neptuno did before it was killed. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect its water / land from [project].

"[Project] threatens [our water, a constitutional human right / our land]. We can provide the shield, the harm, and the coalition's case. [Contact.]"

8H — Rallying the coalition.

Subject: Our water, our land — let's use the tools that are ours.

"[Project] threatens [our water / land]. Uruguay gave itself the power to ban water privatisation by popular vote, and Article 47 still kills such schemes. With a broad coalition, the courts, the shields, and — if it takes it — a popular vote, we can stop this too. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

- 1. Get the authorisation and studies (8A), and find the flaw.**
- 2. Make a substantive submission at the audiencia pública (8B).**
- 3. Check whether a constitutional shield fits — Article 47 on water above all (8C).**
- 4. Litigate a flawed authorisation in the independent courts (8D).**
- 5. If a law is the problem or the fight is big, prepare a referéndum or plebiscito (8E).**
- 6. Build the broad coalition and go public (8G/8H).**

Even lean, those six use the shields and the courts, and open the direct-democracy route — the water-vote template.

WHEN THE SYSTEM IS TILTED

Uruguay's tools are unusually strong, but no system is frictionless, and you must plan for it.

When the decision goes against you. This is a genuine rule-of-law democracy: litigate a flawed authorisation, invoke a constitutional shield, and — if a law is the problem — repeal it by referéndum.

When the fight is too big for the courts alone. Reach for direct democracy — a plebiscito to write a new shield into the Constitution, as the water vote did — accepting the signatures and the national campaign it demands.

When the campaign is long. The water vote took four years. Build a broad, durable coalition and the endurance for a national campaign.

When outside pressure pushes (as the IMF did). The water vote answered exactly this. Use the direct-democracy tools and the constitutional shields, which reach above ordinary politics and outside pressure alike.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Uruguay has one of the region's strongest rule-of-law traditions, so outright corruption is comparatively rare — but capture by commercial interests is still a risk, and the institutions to check it are genuine.

How to spot it. Authorisations against the evidence; studies written for the proponent; contracts favouring the connected; benefits to the connected while water, land, or communities bear the harm.

Who's supposed to guard against it. Uruguay's genuinely independent **audit bodies and courts** examine public money and conduct and can quash a tainted decision. The **constitutional shields** protect above ordinary decisions. And Uruguay's **free press and civil society** press for the law to be honoured.

How to fight it safely. Document precisely and factually — how the authorisation was bent, who benefits, what the shield and the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the audit bodies, the independent courts, and trusted journalists rather than making accusations you can't back. Pair the exposure with the constitutional and legal challenge.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your case; the constitutional shield and the harm aim it; a broad coalition is the muscle; the *audiencia pública*, the courts, and the shields press it; and, for the biggest fights, direct democracy settles it. Together they multiply. One at a time, they stall — and the biggest levers take time.

Early on (weeks 1–8): get the authorisation and studies; find the flaw; make a substantive *audiencia-pública* submission; check the constitutional shield; build a broad coalition.

In the thick of it (months–year+): litigate a flawed authorisation; invoke the shield in the courts; if a law is the problem or the fight is big, launch the referéndum or plebiscito signature drive.

The long haul (years): carry the litigation and, if chosen, the direct-democracy campaign to the vote; keep the coalition broad and durable; hold the line for a law repealed, a privatisation banned, a shield raised, and a project stopped.

FINAL ASSESSMENT

Stopping a destructive project in Uruguay can be done — a people rewrote their own constitution by popular vote, banned water privatisation outright, and were still killing schemes with that shield two decades later. Hold both truths. Uruguay's distinctive power is rare anywhere: real direct-democracy tools — the power to repeal a law by referéndum and amend the Constitution by plebiscito — backed by genuinely independent courts, a strong rule-of-law tradition, an environmental authorisation with a public hearing, and constitutional shields like Article 47 on water. And the constraints, modest by regional standards, are real: the direct-democracy tools demand a tenth of the electorate's signatures and a years-long national campaign, so not every fight can reach that bar.

Here's the discipline that wins. For most fights, use the everyday levers: make a substantive submission at the *audiencia pública*, litigate a flawed authorisation in the independent courts, and invoke a constitutional shield where one fits — above all Article 47 on water, which killed the Neptuno privatisation. For the biggest fights, reach for direct democracy: a referéndum to repeal a harmful law, or a plebiscito to write a new shield into the Constitution, as the water vote did — and be ready for the signatures and the national campaign it demands, built on a broad coalition of unions, environmental groups, academics, artists, and citizens. Count a law repealed, a privatisation banned, a shield raised, and a project stopped as wins. That's what the water vote did — direct democracy, a constitutional shield, the courts, and a broad coalition together. So can you.